

SENATE No. 2818

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 8, 2025.

The committee on Housing to whom was referred the petition (accompanied by bill, Senate, No. 1006) of Joan B. Lovely, Michael D. Brady, Russell E. Holmes, John F. Keenan and others for legislation to create the Home Works Program, report the accompanying bill (Senate, No. 2818).

For the committee,
Julian Cyr

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An Act creating the Home Works Program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws is hereby amended by inserting after
2 section 30 the following new section:-

3 Section 31 (a). As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:-

5 “Youth Serving Organization,” an organization that provides recreational, cultural,
6 charitable, social, or other activities or services for persons under 18 years of age, and is exempt
7 from federal income tax.

8 “Out of School Time Program,” an established licensed or non-licensed daily week day
9 program for persons under 18 years of age offered by a youth serving organization, school
10 system, or municipality, offered before and after school and during school vacation.

11 “Summer Programs,” an established licensed or non-licensed daily week day program for
12 persons under 18 years of age offered by a youth serving organization, school system, or
13 municipality, offered during the months of summer vacation.

14 (b) Subject to appropriation, the executive office shall create a program to address the
15 needs of children, ages five through fourteen, residing in the Emergency Assistance program, as
16 defined by 760 CMR 67.00. The program shall from herein be known as the Home Works
17 Program. The Home Works Program shall allow out of school time and summer programs to
18 apply for a certain number of slots funded by the executive office. Each slot shall be used to
19 provide out of school time and summer programming for an eligible participant, including
20 transportation to and from the program. Each Home Works Program slot shall be funded at an
21 adequate amount not less than 75% of local market value for out of school time and summer
22 services and will cover transportation costs associated with transporting participants to and from
23 the program.

24 The executive office shall keep a waitlist of eligible program participants from which the
25 out of school time and camp programs may draw from to fill their slots.

26 (c) Licensed and non-licensed out of school time and summer programs may apply for
27 program slots through the Department. Said slots shall be allotted proportionally by the areas in
28 the Commonwealth that have the highest number of children residing in the Emergency
29 Assistance Program and through the out of school time or summer program’s capacity. However,
30 a program shall not be limited in the amount of allowable slots it accepts. Said out of school time
31 and summer programs shall be able to meet the transportation requirements set out by the
32 executive office before applying for slots. These include, but are not limited to, the capacity to

transport participants from their current place of residence and back to said place within the time frame set out by the Department of Early Education and Care in 606 CMR 7.13.

If the participant is no longer eligible to remain in the Home Works program, the out of school time or summer program may draw another eligible participant from the Home Works waitlist to fill the slot.

If said program is unable to meet the transportation requirements set out by the executive office, said program may work with the Emergency Assistance residence to provide out of school time and summer programs on site or at another facility deemed acceptable by the executive office of housing and livable communities.

(d) Said out of school time programs and summer programs shall require that all staff members in employment and direct care of children in the program have completed satisfactorily a criminal background check that includes a comprehensive check of the National Sexual Offender Registry.

The Home Works Program shall not be funded through the already existing funds in the Emergency Assistance program.

SECTION 2. The executive office of housing and livable communities shall promulgate regulations in accordance with section 31 of chapter 23B, as inserted by section 1 of this act, within 6 months of the passage of this act.